Protecting Your Trademarks and Other Intellectual Property

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PalmSource
Conference 2000

Overview

- Distinguishing Trademarks from Other IP Rights
- Selecting Good Marks
- Searching and Clearing Marks
- Registering Marks
- Using Marks Correctly
- Palm Economy Marks

Types of Intellectual Property

- Patents
  - Scope: Inventions (“Utility”), Designs
  - Application Process: Complex, 3 Years
  - Duration: Utility=17 Years, Design=14 Years
  - Info and Forms: www.uspto.gov
- Copyrights
  - Scope: Original Expression
  - Application Process: Easy 2 Months
  - Duration: Life of Author+70 Years
  - Duration: Work for Hire=95 from Publication or 120 from Creation
  - Info and Forms: lcweb.loc.gov/copyright

Types of Intellectual Property

- Trade Secrets
  - Scope: Secrets
  - Application Process: None, Must Keep Secret
  - Duration: Potentially Infinite
- Trademarks
  - Scope: Commercial Source Identifiers
  - Application Process: Easy but Tricky, 18 Months
  - Duration: Potentially Infinite
  - Info and Forms: www.uspto.gov

What Is a Trademark?

- A trademark is a symbol used in commerce to identify the source of goods or services
  - Words
  - Designs
  - Names
  - Product features
  - Slogans
  - Sounds
  - Colors
  - Scents

Why Trademark?

- Potentially Huge Monetary Value
  - $72 Billion (Coke),
  - $22 Billion (Marlboro)
  - $16 Billion (Sony)
- Resist Competition
- Avoid Negatives
  - Rebranding
  - Damages
  - Company Death



Why Trademark?

- Create Value
  - Higher Margins
  - Higher Volumes
  - Financing
  - Buyout vs. Pushout

Selecting a Trademark: What Makes a Good Trademark?

- A good trademark is a distinctive trademark
- The more distinctive the mark, the less likely it will infringe other marks or be infringed itself

Levels of Distinctiveness

- Fanciful or coined = Kodak, Xerox, Sony
- Arbitrary = Apple (for computers), Symbol
- Suggestive = Coppertone, HotSync
- Descriptive = TV Guide, Windows, Supercuts
- Generic = Apple (for fruit), Palmtop, Handheld,

- “Genericide” = Aspirin (for acetylsalicylic acid), Elevator, Thermos

Trademark Searching

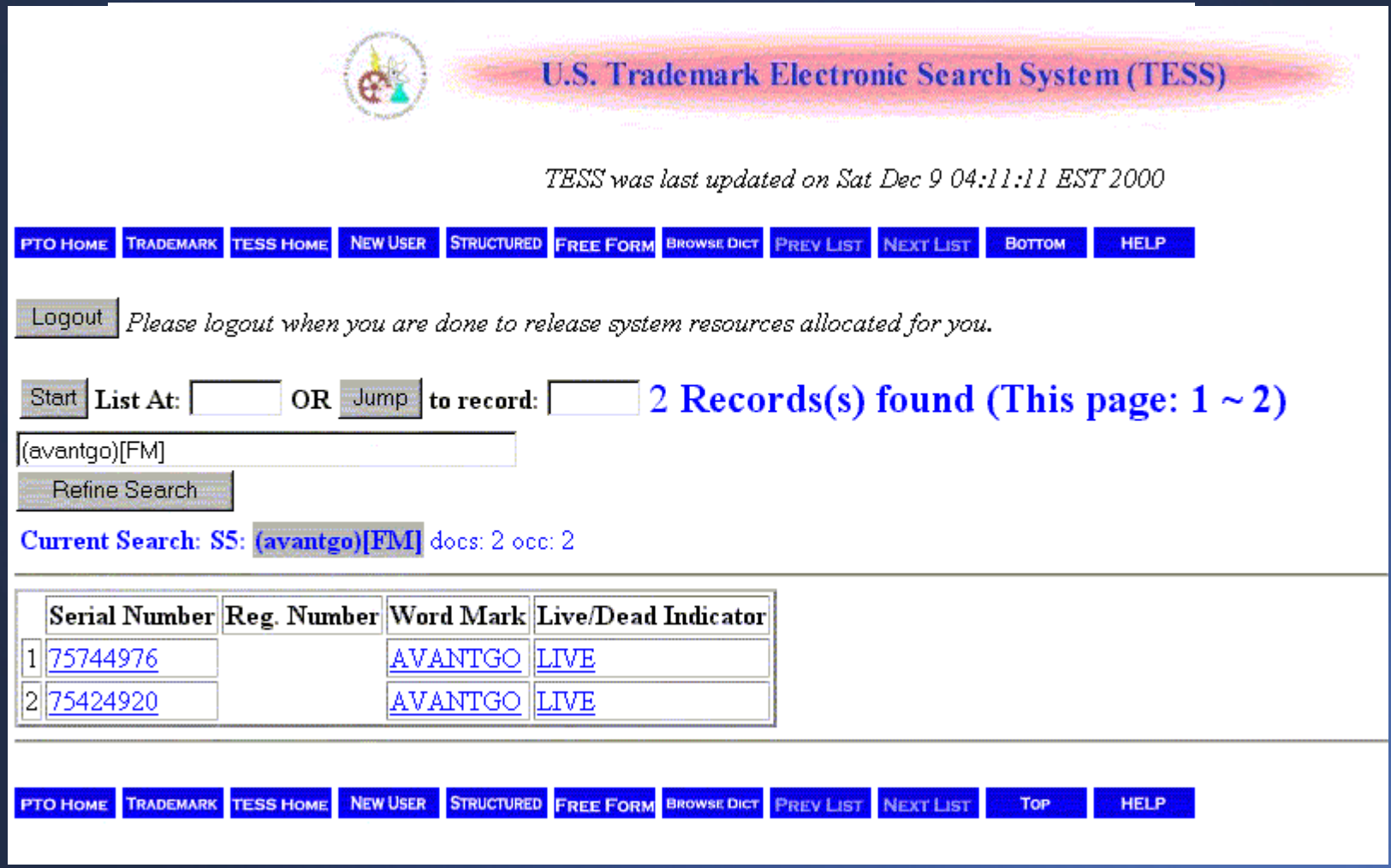
- Preliminary Search
  - Do it yourself
  - More than one
- Comprehensive Search
  - Advice recommended
  - $500 to $1,000 for U.S.
  - $2,000+ per country for International
- Registration
  - Counsel recommended

Preliminary Search: www.uspto.gov



http://tess.uspto.gov/bin/gate.exe?f=tess&state=5okjnt.1.1

Preliminary Search: Summary Results



U.S. Trademark Electronic Search System (TESS)

TESS was last updated on Sat Dec 9 04:11:11 EST 2000

PTO HOME | TRADEMARK | TESS HOME | NEW USER | STRUCTURED | FREE FORM | BROWSE DICT | PREV LIST | NEXT LIST | BOTTOM | HELP

Logout *Please logout when you are done to release system resources allocated for you.*

Start **List At:** OR Jump **to record:** **2 Records(s) found (This page: 1 ~ 2)**

(avantgo)[FM]

Refine Search

Current Search: S5: (avantgo)[FM] docs: 2 occ: 2

	Serial Number	Reg. Number	Word Mark	Live/Dead Indicator
1	75744976		AVANTGO	LIVE
2	75424920		AVANTGO	LIVE

PTO HOME | TRADEMARK | TESS HOME | NEW USER | STRUCTURED | FREE FORM | BROWSE DICT | PREV LIST | NEXT LIST | TOP | HELP

Preliminary Search: Detailed Results

PTO HOME | TRADEMARK | TESS HOME | NEW USER | STRUCTURED | FREE FORM | BROWSE DICT | BOTTOM | HELP | PREV LIST | CURR LIST | NEXT LIST | FIRST DOC | PREV DOC | NEXT DOC | LAST DOC

Logout Please logout when you are done to release system resources allocated for you.

Start List At: [ ] OR Jump to record: [ ] **Record 2 out of 2**

Check Status *(TARR contains current status, correspondence address and attorney of record for this mark. Use the "Back" button of the Internet Browser to return to TESS)*

Typed Drawing

Word Mark	AVANTGO
Goods and Services	IC 009. US 021 023 026 036 038. G & S: COMPUTER SOFTWARE FOR CONNECTING, ACCESSING AND INTEGRATING INTERNAL COMPUTER NETWORKS AND GLOBAL COMPUTER NETWORKS TO HANDHELD COMPUTERS, TELEPHONES AND PAGERS AND MANUALS SOLD AS A UNIT AND DOWNLOADABLE FROM AN ON-LINE COMPUTER NETWORK
Mark Drawing Code	(1) TYPED DRAWING
Serial Number	75424920
Filing Date	January 28, 1998
Filed ITU	FILED AS ITU
Published for Opposition	January 25, 2000
Owner	(APPLICANT) AVANTGO, INC. CORPORATION BY CHANGE OF NAME DELAWARE 1650 S. AMPHLETT BLVD. SUITE 212 SAN MATEO CALIFORNIA 94402
Assignment Recorded	ASSIGNMENT RECORDED
Attorney of Record	MARK A STEINER
Type of Mark	TRADEMARK
Register	PRINCIPAL

Preliminary Search: Current Status

Serial Number: 75424920

Registration Number: (NOT AVAILABLE)

Mark (words only): AVANTGO

Current Status: Opposition period completed, a Notice of Allowance has been issued.

Date of Status: 2000-04-18

Filing Date: 1998-01-28

The Notice of Allowance Date is: (DATE NOT AVAILABLE)

Registration Date: (DATE NOT AVAILABLE)

Law Office Assigned: TMO Law Office 112

CURRENT APPLICANT(S)/OWNER(S)

1. AVANTGO, INC.

GOODS AND/OR SERVICES

COMPUTER SOFTWARE FOR CONNECTING, ACCESSING AND INTEGRATING INTERNAL COMPUTER NETWORKS AND GLOBAL COMPUTER NETWORKS TO HANDHELD COMPUTERS, TELEPHONES AND PAGERS AND MANUALS SOLD AS A UNIT AND DOWNLOADABLE FROM AN ON-LINE COMPUTER NETWORK

PROSECUTION HISTORY

2000-04-18 - NOTICE OF ALLOWANCE-MAILED

2000-01-25 - PUBLISHED FOR OPPOSITION

1999-12-23 - NOTICE OF PUBLICATION

1999-07-05 - APPROVED FOR PUB - PRINCIPAL REGISTER

1999-06-23 - EXAMINERS AMENDMENT MAILED

1998-10-05 - NON-FINAL ACTION MAILED

1998-09-17 - ASSIGNED TO EXAMINER

Full Search: Discover Unregistered Users

- Outside Counsel
  - Common Law Databases
  - Sophisticated Queries
  - Trained Opinion
- Inhouse
  - Save Money
  - Web
  - Ask Around





Federal Registration

- Deterrent
  - Constructive and actual notice
  - ® Symbol
- Access to federal courts
- Incontestability after five years
- $750 to $2,000 for U.S.
  - ($750 to $5,000 for foreign)
- 14- to 30-month application process

Correct Trademark Usage

- Use marks as proper adjectives followed by nouns
- Do not use marks as verbs, plurals, or possessives
- Use proper trademark notices

Trademark Grammar

Pronoun	Verb Phrase	Article	Adjective	Noun
You	should drive	a	German	car
You	should buy	a	Palm III	organizer
You	should use	the	HotSync	function

Correct Trademark Usage

- Use marks as proper adjectives followed by nouns
- Do not use marks as verbs, plurals, or possessives
- Use proper trademark notices
  - TM or ®
  - First and most prominent uses
  - Attribution Notices

IP Attribution Blocks—Short Form

© 2000 Palm, Inc.

HotSync and Palm OS are registered trademarks and Palm and MyPalm are trademarks of Palm, Inc.

IP Attribution Blocks—Long Form

© 2000 Palm, Inc.

Palm OS, Palm Computing, HandFAX, HandSTAMP, HandWEB, Graffiti, HotSync, iMessenger, MultiMail, Palm.Net, PalmConnect, PalmGlove, PalmModem, PalmPoint, PalmPrint, and the Palm Platform Compatible Logo are registered trademarks of Palm, Inc.

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The trademarks PalmPix, PalmPrint, PalmPower and PalmGear are used under license from Palm, Inc. by Eastman Kodak Company, Stevens Creek Software, Component Enterprises, Inc. and PalmGear H.Q. respectively.

Palm Economy Trademarks



Palm Products

When referencing products manufactured and branded by Palm, Inc., the preferred formal pairings of trademark and descriptive noun are:

Palm™ handhelds

Palm™ accessories

Palm™ services



The correct logo is:



Licensee and OEM Products

When referencing hardware that operates on the Palm OS® platform, the preferred pairings of trademark and descriptive noun are:

Palm Powered™ handhelds

Palm Powered™ devices

The correct logo is:





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Compatible Hardware

When referencing accessories for Palm™ devices, use a tagline like this:

Leather Case for the Palm™ m100

Data Cable for Palm™ III Series Handhelds

After passing compatibility testing,
the correct logo is:



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Compatible Software

When referencing software for the Palm OS®, use a tagline like this:

RenoCasino for Palm OS®

KillerApp for Palm Powered™ Devices

After passing compatibility testing,
the correct logo is:

palm powered™
Compatible Solution



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Palm™ Alliance Program



Generic Category

- Never use Palm trademarks generically
  - Don’t use “Palm Computers” to describe handheld devices that are not compatible with the Palm OS® platform
  - Never say “Palms” to describe any handheld devices
  - Preferred generics:
    - “handhelds”
    - “handheld computers”
    - “devices”

Additional Resources

- Intellectual Property Overviews:
  - http://library.lp.findlaw.com/intellectualproperty.html
  - http://www.uspto.gov/
  - http://www.thomson-thomson.com/
- Palm Trademark Guidelines:
  - http://www.palm.com/about/trademark.html
- Palm Alliance Program
  - http://www.palmos.com/alliance/
- Palm Brand Hotline:
  - 408-326-8717

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accelerate
collaborate
innovate
communicate
palm
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